

24STCV23171 24STCV23171

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-06

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Case Number: 24STCV23171 Hearing Date: July 6, 2026 Dept: 510

No. 11 – Judi Wise, et al. v. BVCA Homeowners Association, et al.

Cross-Defendant SCDS Enterprises's Motion for Determination of Good Faith Settlement

Cross-Defendant

SCDS Enterprises dba Servpro of Westlake ("Servpro") moves for an order

determining the good faith of its settlement with Plaintiffs Judi and Warren

Wise under Code of Civil Procedure section 877.6, subdivision (a).

When

only some of multiple defendants alleged to be jointly liable settle a case,

the settling parties may apply to the court for a determination of good faith

settlement. (Code Civ. Proc., §

877.6(a).) A determination of good faith "shall bar any other joint tortfeasor

or co-obligor from any further claims against the settling tortfeasor or

co-obligor for equitable comparative contribution, or partial or comparative

indemnity, based on comparative negligence or comparative fault." (Id.,

subd. (c).)

Any opposing party bears “the

burden below to show the settlement amount was ‘so far “out of the ballpark” in

relation to’ the [various] factors that the settlement was inconsistent with

the equitable objectives of section 877.6.” (Cahill v. San Diego Gas &

Electric Co. (2011) 194 Cal.App.4th 939, 967; accord Code Civ. Proc., §

877.6(d).)

After

considering all relevant factors, the Court finds the settlement between Cross-Defendant

Servpro and Plaintiffs Judi and Warren Wise was made in good faith. In making such a determination, the Court must

consider various factors stated in Tech-Bilt, Inc. v. Woodward-Clyde &

Associates (1985) 38 Cal.3d 488, 499-500. “ ‘Good faith may be found

only if there has been no collusion between the settling parties and where the

settlement amount appears to be within the “reasonable range” of the settling

party’s proportionate share of comparative liability for a plaintiff’s

injuries.’ ” (Long Beach Memorial Medical Center v. Superior Court

(2009) 172 Cal.App.4th 865, 872.)

Servpro settled with Plaintiffs for \$20,000. (McNamara

Decl., ¶ 18.) While Plaintiffs did not bring any claims directly against

Servpro, counsel for Servpro states that Plaintiff requests “at least \$200k in

damages against several Defendants.” (Id., ¶ 14.) Counsel states that

the settlement was “the result of arm's-length negotiations between counsel for

Plaintiffs and counsel for Servpro. The settlement involves no collusion among

any parties.” (Id., ¶¶ 19-20.) The Court finds Servpro presents

sufficient evidence showing this settlement is within the reasonable range of

its potential share of liability.

No other party has asserted a lack of good

faith or presented any evidence on that issue. “The party asserting the lack of

good faith shall have the burden of proof on that issue.” (CCP § 877.6(d).)

Disposition

Cross-Defendant SCDS Enterprises dba

Servpro of Westlake's motion for determination of good faith settlement is granted.

Under Code of Civil Procedure

section 877.6, the Court hereby finds the settlement between Cross-Defendant

Servpro and Plaintiffs Judi and Warren Wise was made in good faith.